

December 18, 2024

1:30 P.M. Civil Case Management

19CV44032	DUFRESNE V. JPMORGAN CHASE BANK, N.A.	The matter was removed to federal court in 2019. Counsel for plaintiff is reminded that if the matter resolves a dismissal must be filed with this Court. The next Case Management Conference is set for June 18, 2025, at 1:30 p.m. in Dept. 4.
21CV45125	KOYAMA CONSTRUCTION INC. v THOMPSON, ET AL	The matter has been referred to binding arbitration. The Court requests an update on the status of arbitration prior to the next Case Management Conference on June 18, 2025, at 1:30 p.m. in Dept. 4.
21CV45393	ROEDER v KAUTZ VINEYARDS INC.	A Notice of Removal has been filed. Parties have been reminded of the requirement to file a dismissal in this Court if the case resolves. The next Case Management Conference is set for June 18, 2025, at 1:30 p.m. in Dept. 4.
22CV46351	SANCHEZ, ET AL v SIMPSON, JR, ET AL	The matter has been referred to binding arbitration. The next Case Management Conference is set for June 18, 2025, at 1:30 p.m. in Dept. 4.
22CV46405	CALIFORNIA FAIR PLAN ASSOCIATION v FYOCK, ET AL	The Plaintiff is directed to have an answer, default or dismissal on file for all defendants by the next Case Management Conference on May 7, 2025, at 1:30 p.m. in Dept. 4.
23CF14053	PORTFOLIO RECOVERY ASSOCIATES LLC v SNOW	A Judgment on the Pleadings has been ordered and all future hearings vacated. No Request for Dismissal has been filed. An OSC re Dismissal is set for April 16, 2025, at 1:30 p.m. in Dept. 4. The Court will send notice.
23CF14190	LEE v WIDEBROOK	Plaintiff has not filed a Proof of Service of the Summons and Complaint with the Court. An OSC re: Dismissal is set on February 26, 2025, at 1:30 p.m. in Dept. 4, when the court will consider dismissing the matter pursuant to Rule of Court 3.740(d) absent a showing of good cause. The Court will send notice.
23CF14355	1 ST FINANCIAL BANK USA v EBERWEIN	There is proper service of the Complaint and Summons, but it has not been

		answered and no default has been filed. An OSC re: Default Judgment is continued to April 9, at 1:30 p.m. in Dept. 4, when the court will consider dismissing the matter pursuant to Rule of Court 3.740(f) absent a showing of good cause. The Court will send notice.
23CF14360	JPMORGAN CHASE BANK, N.A. v LYNDIA JOHNSTON	There is proper service of the Complaint and Summons, but it has not been answered and no default has been filed. An OSC re: Default Judgment is continued to April 9, at 1:30 p.m. in Dept. 4, when the court will consider dismissing the matter pursuant to Rule of Court 3.740(f) absent a showing of good cause. The Court will send notice.
23CV46548	SABANOVICH v LONGS DRUG STORES CALIFORNIA, LLC	The matter has been transferred to Binding Arbitration. The parties are reminded to file a dismissal when the arbitration is completed. The next Case Management Conference is set for June 25, 2025, at 1:30 p.m. in Dept. 4.
23CV46918	THE LAKES TREATMENT CENTER, INC. A CALIFORNIA CORPORATION v BLUE CROSS OF CALIFORNIA A CALIFORNIA CORPORATION	The matter has been stayed and arbitration compelled. The parties are reminded to update the Court on the status of arbitration when a substantive update is available. The next Case Management Conference is set for June 25, 2025, at 1:30 p.m. in Dept. 4.
23CV46996	LEONARD v ENDER, ET AL	The parties indicate that the matter has settled and a request for dismissal will be filed when the settlement is complete. The next Case Management Conference is set for June 25, 2025, at 1:30 p.m. in Dept. 4.
23CV47061	ALARCON V TODD E. HENTZ AND KATRNE HEINTS AS TRUSTEES OF THE 2012 HEINTZ FAMILY TRUST DATED MARCH 14, 2012, ET AL	Plaintiff is attempting to complete service of the Summons and Complaint. The Court cannot proceed with any orders until the Proof of Service is filed. The next Case Management Conference is set for June 18, 2025, at 1:30 p.m. in Dept. 4.
23CV47074	SEMPALAR v AMERICAN LEGION AMBULANCE, ET AL	The matter is set for a Mandatory Settlement Conference on September 15, 2025, at 8:30 a.m. in Dept. 2. Mandatory Settlement Conference

		Statements are to be filed by 3:00 p.m. on September 5, 2025. The Court will send notice.
24CF14454	JPMORGAN CHASE BANK, N.A. v JOHNSTON	The case is at issue. The matter is set for trial on June 5, 2025, at 1:30 p.m. in Dept. 2. The Court will send notice.
24CF14459	CITIBANK, N.A. v VELLIOS	An Answer has been filed with the Court but there is no proof of service. The Defendant is directed to provide proof of service prior to the next Case Management Conference on March 26, 2025, at 1:30 p.m. in Dept. 4. Absent proof of service, Plaintiff is to have a dismissal or default on file by the next Case Management Conference. The Court will send notice.
24CF14462	WELLS FARGO BANK, N.A. v VELLIOS	The case is at issue. The matter is set for trial on June 12, 2025, at 1:30 p.m. in Dept. 2. The Court will send notice.
24CF14540	CAVALRY SPV I LLC AS ASSIGNEE OF CITIBANK N.A. v MAYS	An Answer has been filed with the Court but there is no proof of service. The Defendant is directed to provide proof of service prior to the next Case Management Conference on March 26, 2025, at 1:30 p.m. in Dept. 4. Absent proof of service, Plaintiff is to have a dismissal or default on file by the next Case Management Conference. The Court will send notice.
24CF14678	LVNV FUNDING LLC v MOREFIELD	The case is at issue. The matter is set for trial on June 26, 2025, at 1:30 p.m. in Dept. 2. The Court will send notice.
24CV47213	BENNETT, ET AL v LIBERTY MUTUAL INSURANCE COMPANY	There is no proof of service of the Complaint and Summons. The Court cannot proceed further without a filed proof of service. The Court notes this action was filed to preserve the statute of limitations on an underinsured motorist claim. Plaintiff is reminded that a dismissal must be filed in this action if said claim resolves through negotiation or arbitration. The next Case Management Conference is set for June 25, 2025, at 1:30 p.m. in Dept. 4.
24CV47233	WESTON v BRENGMAN	The matter is set for a Mandatory Settlement Conference on September

		22, 2025, at 8:30 a.m. in Dept. 2. Mandatory Settlement Conference Statements are to be filed by 3:00 p.m. on September 12, 2025. The Court will send notice.
24CV47241	SPENCE v BLACK OAK MINING COMPANY	Judgment has been entered for Plaintiff. Plaintiff is directed to submit a Request for Dismissal. The matter is set for an OSC re Dismissal on April 2, 2025, at 1:30 p.m. in Dept. 4, where the court, absent a showing of good, will consider dismissing the matter pursuant to Rule of Court 3.1385(a) if a Request for Dismissal has not been filed. The Court will send notice.
24CV47255	FLORES-RUIZ v RITES OF PASSAGE, ATCS SIERRA RIDGE	The matter is set for a Mandatory Settlement Conference on September 29, 2025, at 8:30 a.m. in Dept. 2. Mandatory Settlement Conference Statements are to be filed by 3:00 p.m. on September 19, 2025. The Court will send notice.
24CV47263	FERNANDEZ, AN INDIVIDUAL v THE RESOURCE CONNECTION OF AMADOR AND CALAVERAS COUNTIES INC., A CALIFORNIA NON, ET AL	The matter is set for a Mandatory Settlement Conference on October 6, 2025, at 8:30 a.m. in Dept. 2. Mandatory Settlement Conference Statements are to be filed by 3:00 p.m. on September 25, 2025. The Court will send notice.
24CV47268	O'CONNOR, ET AL v NISSAN NORTH AMERICA, INC.	The matter is set for a Mandatory Settlement Conference on October 13, 2025, at 8:30 a.m. in Dept. 2. Mandatory Settlement Conference Statements are to be filed by 3:00 p.m. on October 3, 2025. The Court will send notice.
24CV47301	WONG v WEBB	The matter is set for a Mandatory Settlement Conference on October 20, 2025, at 8:30 a.m. in Dept. 2. Mandatory Settlement Conference Statements are to be filed by 3:00 p.m. on October 10, 2025. The Court will send notice.
24CV47302	SANCHEZ v SLAKEY BROTHERS, ET AL	The matter is set for a Mandatory Settlement Conference on October 27, 2025, at 8:30 a.m. in Dept. 2. Mandatory Settlement Conference Statements are

		to be filed by 3:00 p.m. on October 17, 2025. The Court will send notice.

2:00 P.M. Family Law Case Management

17FL42511	SULLIVAN v SULLIVAN	As child custody orders are in place, this matter cannot be dismissed. Respondent is directed to serve and file a Preliminary Declaration of Disclosure prior to the next Case Management Conference on June 18, 2025, at 2:00 p.m. in Dept. 4. The Court will send notice.
18FL43554	HUBER- BERNHARD v BERNHARD	Default was entered on April 5, 2019; Petitioner must schedule a Prove Up Hearing to obtain a Default Judgment. The next Case Management Conference is set for June 18, 2025, at 2:00 p.m. in Dept 4. The Court will send notice.
19FL44238	HARDING v PLUNKETT	The matter is dismissed pursuant to Code of Civil Procedure section 583.310.
20FL44746	FEREA v FEREА, JR	There is proper service of the Petition and Summons, but Respondent has never appeared. Petitioner is directed to have a response, dismissal, or default on file by the next Case Management Conference on June 18, 2025, at 2:00 p.m. in Dept. 4. The Court will send notice.
22FL45847	EVANS v EVANS	There is proper service of the Petition and Summons, but Respondent has never appeared. Petitioner is directed to have a response, dismissal, or default on file by the next Case Management Conference on June 18, 2025, at 2:00 p.m. in Dept. 4. The Court will send notice.
22FL45981	COLE v GARIBALDI	The Summons and Petition have been filed but not properly served. The Court cannot proceed further absent proper service. Petitioner is directed to have proof of service on file prior to the next Case Management Conference on June 18, 2025, at 2:00 p.m. in Dept. 4. The Court will send notice.
22FL46056	NUNES v WEBB	There is proper service of the Petition and Summons, Respondent has appeared but has not filed a formal Response. Petitioner is directed to have a response or dismissal on file by the next Case Management Conference on June 18, 2025, at 2:00 p.m. in Dept. 4.
22FL46174	HUNT v HUNT	The Summons and Petition have been filed but not properly served. The Court cannot proceed further absent proper service. Petitioner is directed to have proof of service on file prior to the next Case Management Conference on June 18, 2025, at 2:00 p.m. in Dept. 4. The Court will send notice.

22FL46335	GONZALES v DIAZ	The Summons and Petition have been filed but not properly served. The Court cannot proceed further absent proper service. Petitioner is directed to have proof of service on file prior to the next Case Management Conference on June 18, 2025, at 2:00 p.m. in Dept. 4.
22FL46436	BASS v KERR	The Summons and Petition have been filed but not properly served. The Court cannot proceed further absent proper service. Petitioner is directed to have proof of service on file prior to the next Case Management Conference on June 18, 2025, at 2:00 p.m. in Dept. 4. The Court will send notice.
23FL46766	PEARSALL v WICHERT	The Summons and Petition have been filed but not properly served. The Court cannot proceed further absent proper service. Petitioner is directed to have proof of service on file prior to the next Case Management Conference on June 18, 2025, at 2:00 p.m. in Dept. 4. The Court will send notice.
23FL46775	GIVENS v GIVENS	The Summons and Petition have been filed but not properly served. The Court cannot proceed further absent proper service. Petitioner is directed to have proof of service on file prior to the next Case Management Conference on June 25, 2025, at 2:00 p.m. in Dept. 4. The Court will send notice.
23PA46498	GALAS v WINKLER	The Summons and Petition have been filed but not properly served; the proof of service filed January 6, 2023, is facially incorrect. The Court cannot proceed further absent proper service. Petitioner is directed to have proof of service on file prior to the next Case Management Conference on June 11, 2025, at 2:00 p.m. in Dept. 4. The Court will send notice.
23PA46985	CLINKENBEARD v MARLETT	The Summons and Petition have been filed but not properly served. The Court cannot proceed further absent proper service. Petitioner is directed to have proof of service on file prior to the next Case Management Conference on June 25, 2025, at 2:00 p.m. in Dept. 4. The Court will send notice.
24FL47212	NUNEZ v CAPILLA	The Summons and Petition have been filed but not properly served. The Court cannot proceed further absent proper service. Petitioner is directed to have proof of service on file prior to the next Case Management Conference on June 25, 2025, at 2:00 p.m. in Dept. 4. The Court will send notice.
24FL47247	COUCH v COUCH	The Summons and Petition have been filed but not properly served. The Court cannot proceed further

		absent proper service. Petitioner is directed to have proof of service on file prior to the next Case Management Conference on June 25, 2025, at 2:00 p.m. in Dept. 4. The Court will send notice.
24FL47530	LEE v DRAPER	Petitioner and Respondent are directed to file and serve their preliminary declarations of disclosure prior to the next Case Management Conference on April 30, 2025, at 2:00 p.m. in Dept. 4, when the Court intends to set a Mandatory Settlement Conference if the parties have complied. The court will send notice.
24FL47546	MICHNOWSKA v OKULSKI	The Summons and Petition have been filed but not properly served. The Court cannot proceed further absent proper service. Petitioner is directed to have proof of service on file prior to the next Case Management Conference on June 18, 2025, at 2:00 p.m. in Dept. 4.
24FL47554	LYNN v MAPESO	Petitioner and Respondent are directed to file their preliminary declarations of disclosure prior to the next Case Management Conference on April 30, 2025, at 2:00 p.m. in Dept. 4, when the Court intends to set a Mandatory Settlement Conference if the parties have complied.
24FL47555	GARDUNO DE ANAYA v RAMOS	There is proper service of the Petition and Summons, but Respondent has not appeared or filed a formal Response. Petitioner is directed to file and serve her preliminary declaration of disclosure (FL-141) and have a response, dismissal, or default on file by the next Case Management Conference on April 23, 2025, at 2:00 p.m. in Dept. 4.
24PA47218	RECTOR v WRIGHT	The Summons and Petition have been filed but not properly served. The Court cannot proceed further absent proper service. Petitioner is directed to have proof of service on file prior to the next Case Management Conference on June 11, 2025, at 2:00 p.m. in Dept. 4. The Court will send notice.
24PA47235	LUIS v LONGOZO	The Summons and Petition have been filed but not properly served. The Court cannot proceed further absent proper service. Petitioner is directed to have proof of service on file prior to the next Case Management Conference on June 11, 2025, at 2:00 p.m. in Dept. 4. The Court will send notice.
24PA47557	NEWHALL v PRESZLER	The Summons and Petition have been filed but not properly served. The Court cannot proceed further absent proper service. Petitioner is directed to

		have proof of service on file prior to the next Case Management Conference on June 11, 2025, at 2:00 p.m. in Dept. 4. The Court will send notice.